

the advertised functionalities and live up to expectations.

The third reason to incorporate OSS is to get the bleeding-edge technology. In-house developed products may or may not be as good or at par with technology already present in the market. In such cases, an open source module can be integrated into one's own product.

Licensing of the open source software

Open source software can be licensed in varied ways. It can be released into the public domain, where there is no need to put it under any licence. OSS can also be released under a public licence such as the WTF Public Licence and the CC (Creative Commons) licence.

An open source licence must offer a 'no warranty' clause. So, the company, developer or individual using a particular OSS cannot approach the author of that software and claim damages, saying the former suffered losses due to the software developed and open sourced by the latter. Such claims are not strong enough to hold up in court but enough to create trouble for the author. Thus, an author must include a 'no warranty' clause.

There are a lot of permissive licences that offer a no warranty clause and give basic permissions to use the open source code. Such licences do not place too many restrictions on users and companies, and are very user friendly for developers and authors. So, for example, if authors want to release their own contribution under the MIT licence, they need to be aware that this licence has an explicit clause, which states that users cannot blame an author for any loss that they suffer as this software comes with a 'no warranty' clause.

If your software uses an algorithm that is patented, then I would suggest you go for the Apache licence, because it has an explicit clause that grants patent rights to anyone using that open source software.

Why is this important? Let me explain it this way – if your software includes a patented algorithm, and you release that software under the MIT licence, then you are not giving the patent rights to the user. So users will naturally be worried and wonder that though they are using a patented algorithm in open source software, do they actually have the rights to do so? This will inhibit people from using your open source software and they may prefer to go with other open source software. This is where an Apache licence will help you. With it, you can license all the technology you have and all the algorithms that you have created for the open source community.

The last option is the restrictive licence. If you want to monetise your software, the permissive licences and the public domain licences won't help. If you want to earn money from your open source software, then you must opt for a restrictive licence. In the case of restrictive licences, an author can put multiple restrictions. And if a company/individual wants to use

that software without those restrictions, they need to come back to the author and ask for another copy that they can use for commercial purposes.

This is how a developer/author can earn money by giving out a commercial licence to the user. Restrictive licences include the General Public License (GPL), the Lesser General Public License (LGPL) and the Affero General Public License (AGPL). Each comes with different restrictions.

Never call it a product

If you have a product that you want to open source and monetise, one of the most important factors to remember is that you should never label it as a product. The moment it is labelled as that, people will think that it's a finished product and that there is nothing to contribute. But if you are calling it a project, something that Apache and Linux do, there will always be contributors. They will contribute to benefit the community and get recognition. Open source software should be looked at as a community engineering collaboration; users should be allowed to collaborate, integrate and submit their contributions. That's how a project can improve exponentially — by a lot of people contributing to it.

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advertising.**
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-Thomas
Babington Macaulay

